

The matter will be on calendar on **Monday, June 8, 2026 at 9:00 a.m. in Department 63** for status of class notice. The parties are ordered to submit to the Court no later than June 1, 2026, a joint statement (or separate status statements if the parties cannot agree) that outlines a proposed class notice.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Demurrer: Defendant County of Shasta demurs to the First Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. The matter was on for hearing on March 23, 2026 and the Court noted there was no Proof of Service on file for the Opposition filed by Plaintiffs and that Defendant had not filed a Reply. County Counsel informed the Court that the County had not received the Opposition. The Court continued the hearing to today. On March 23, 2026, Plaintiffs filed a Proof of Service indicating that on February 24, 2026 the Opposition was served on “County of Shasta, Clerk of the Board C/O County Counsel” at “1450 Court Street, Suite 308B Redding, CA 96001.” This is the address for the Clerk of the Board. County Counsel is Suite 332. In all cases where a party has an attorney in the action or proceeding, the service of papers must be upon the attorney instead of the party. CCP § 1015. Therefore, service on the Clerk of the Board instead of County Counsel was invalid and it appears that Defendant County of Shasta has still not been properly served with Plaintiffs’ Opposition.

The Court has also received a “notice of lodging proposed order re: leave to file second amended complaint” from Plaintiff. Absent a stipulation or noticed motion, the Court cannot unilaterally grant the relief requested by Plaintiff.

The matter is continued to **Monday, May 11, 2026 at 8:30 a.m. in Department 63** for hearing on the Demurrer. Plaintiffs are **ORDERED** to properly serve the Opposition. The Court notes that a Substitution of Attorney was filed on April 9, 2026 and the Defendant County of Shasta is now represented by Best Best & Krieger, LLP. The address listed is 300 South Grand Avenue, 25th Floor, Los Angeles, CA 90071. Plaintiffs are reminded of the timelines set forth in CCP § 1005(b). If the Opposition has not been properly served with a valid Proof of Service on file, the Court intends to strike the Opposition at the next hearing for lack of valid notice to Defendant County of Shasta. **No appearance is necessary on today’s calendar.**

ROBERT "BEAR" MASTERSON, INDIVIDUALLY, AND DERIVATIVELY ON BEHALF OF SLO GROUP LLC, ET AL. VS. SARAF, ET AL.

CASE NUMBER: 26CV-0210047

Tentative Ruling on Petition to Compel Arbitration and Stay Proceedings: Defendants Nishant Reddy and Simmon Saraf petition for an order compelling arbitration of Plaintiff, Robert “Bear” Masterson’s, claims and staying the proceedings pending completion of arbitration. Plaintiff opposes the motion. The Court notes that service of the petition and supporting documents was purportedly served by “Court E-Service.” No such service method exists with this Court. As the Plaintiff has filed an opposition, it appears this method of service may have been marked in error.

Merits: The Federal Arbitration Act (“FAA”) like California law, codifies the strong public policy in favor of enforcing arbitration agreements. 9 U.S.C. § 1 et seq. The FAA applies to any written arbitration agreement in a contract evidencing a transaction involving interstate commerce. *Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 25, 277. The court’s role under the FAA is limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. *See* 9 U.S.C. § 4; *Simula, Inc. v. Autoliv, Inc.*, 175 F.3d 716, 719–20 (9th Cir.1999); *see also Republic of Nicaragua v. Standard Fruit Co.*, 937 F.2d 469, 477–78 (9th Cir.1991). If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms. *Chiron Corp. v. Ortho Diagnostic Sys., Inc.* (2000) 207 F.3d 1126, 1130. Plaintiff has provided copies of the Operating Agreements

attached to the Complaint. Each Operating Agreement provides that the “United States Arbitration Act shall govern the interpretation, enforcement, and proceedings pursuant hereto.” The Court finds that the FAA governs the Arbitration Agreements.

Plaintiff contends that the arbitration agreement is not applicable to the controversies at issue in this case and that the delegation clause does not affect the court’s authority to determine the arbitrability of statutory claims.

“The arbitrability of a dispute may itself be subject to arbitration if the parties have so provided in their contract.” *McCarroll v. Los Angeles County Dist. Council of Carpenters* (1957) 49 Cal.2d 45. “Because the parties are the masters of their collective fate, they can agree to arbitrate almost any dispute—even a dispute over whether the underlying dispute is subject to arbitration.” *Bruni v. Didion* (2008) 160 Cal.App.4th 1272. “There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable.” *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231. “Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.” *Id.*

Here, the Operating Agreements provided by Plaintiff provide evidence of electronically signed agreements that cover “Any dispute, controversy, or claim arising out of or relating to this Agreement, including any determination of the scope of applicability of this Section 11.12.2, shall be finally settled by arbitration administered by the American Arbitration Association (“AAA”) in accordance with its Commercial Arbitration Rules, the judgment on the award rendered by the arbitral tribunal may be entered in any court having jurisdiction thereof.” The parties dispute whether Plaintiff’s causes of action “arise out of or relate to” the agreement. The Operating Agreements clearly and unmistakably provide that an arbitrator is delegated to determine the scope of applicability of the arbitration sections, and thus what causes of action may or may not be subject to arbitration. Plaintiff has not alleged that the delegation clause is revocable under the defenses of fraud, duress, or unconscionability. The Court finds the delegation clauses are effective.

In light of the delegation clauses, the Court need not consider Plaintiff’s arguments regarding whether the arbitration clause applies to Plaintiff’s particular causes of action.

The Petition is **GRANTED**. The parties are compelled to arbitration and the matter is ordered stayed pending arbitration. A proposed order was lodged with the Court and will be executed. The Court sets this matter for **Monday, November 2, 2026, at 9:00 a.m. in Department 63** for review regarding status of arbitration. The hearing on the request for preliminary injunction set for April 27, 2026, the mandatory settlement conference set for November 30, 2026 and the trial set for February 2, 2027 are **VACATED**. In light of the stay of the case, the parties should be prepared to address at the hearing the Court’s continued authority to oversee the actions of a receiver.

STATE OF CALIFORNIA, BY AND THROUGH THE CALIFORNIA DEPARTMENT OF FORESTRY AND FIRE PROTECTION VS. BORGNA

CASE NUMBER: 25CV-0208978

Tentative Ruling on Demurrer to Cross-Complaint: Plaintiff/Cross-Defendant State of California, by and through California Department of Forestry and Fire Protection (hereinafter “Cross-Defendant”) generally demurs to the Defendant/Cross-Complainant Guiliano Borgna’s (hereinafter “Cross-Complainant”) Cross-Complaint on the grounds that both causes of action fail to state sufficient facts. Specifically, Cross-Defendant alleges that Cross-Complainant does not contain sufficient facts to establish water rights or an easement on state lands.

Procedural Defect: As a preliminary matter, the Court notes that the opposition was filed on April 14, 2026, only four court days prior to the hearing. CCP § 1005 requires an opposition to have been filed nine court days prior to the hearing. The opposition is untimely. The Court will exercise its discretion and consider the late filed opposition.